

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT MEHTA,

Petitioner

VS.

COURTNEY MEHTA,

Respondent

) Case Number: FDI-25-802312

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF VISITATION (PARENTING TIME, CONSOLIDATION
OF PROCEEDINGS; REQUEST FOR ORDER RE: SANCTIONS UNDER FC SECTION 271 AND
CCP SECTION 128.5; FINDING OF VIOLATION OF TDVRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Father's Request for Order Filed 2/23/26

A. Procedural History

- 1) The parties are Petitioner Amit Mehta (Father) and Respondent Courtney Mehta (Mother). There is one minor child subject to this proceeding: Aadi Caleb Mehta (DOB: 10/22/23).
- 2) On 2/23/26, Father filed a Request for Order seeking modification of visitation and consolidation of cases. The existing parenting plan was established in related case no. FDV-25-818798. Pursuant to the existing order, Father has parenting time with the minor child on Tuesdays and Thursdays from 4:00 p.m. – 7:00 p.m. and on Saturdays from 11:00 a.m. – 2:00 p.m., with exchanges occurring at the Stonestown Mall (main entrance near Peet's Coffee). Father requests additional parenting time and consolidation of the domestic violence action (FDV-25-818798) into the dissolution action (FDI-25-802312).

- 3) On 3/3/26, Mother filed a Responsive Declaration wherein she asks the Court to deny the relief requested by Father.
- 4) On 3/30/26, the Court conducted a readiness hearing during which the matter was referred to Family Court Services (FCS) Mediation on April 21, 2026 and set for return hearing on May 5, 2026.
- 5) On 4/28/26, Father filed "Reply Declaration of Petitioner in Support of RFO for Modification of Parenting Time," which has been read and considered by the Court.
- 6) On 4/28/26, Father filed a "Reply Declaration of Andrea Palash in Support of Petitioner's RFO for Modification of Parenting Time," which has been read or considered by the Court.
- 7) On 5/2/26, Father filed "Petitioner's Opposition to Respondent's Motion to Strike Petitioner's Reply Pleadings," which has been read and considered by the Court. The Court notes it did not receive a "motion to strike" from Respondent.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Father's request for additional parenting time with the minor child is DENIED. The Court will not consider an increase in Father's parenting time until the Request for Domestic Violence Restraining Order (DVRO) has been adjudicated.
- 3) Father's request that the Court consolidate related case no. FDV-25-818798 into case no. FDI-25-802312 is GRANTED. Case no. FDI-25-802312 shall be the lead case; any and all future pleadings shall be filed in the lead case number.

II. Mother's Request for Order Filed 2/13/26 in Case No. FDV-25-818798

A. Procedural History

- 1) On 2/13/26, Mother filed a Request for Order seeking a finding that Father violated the Temporary Restraining Order (TRO) by acting in concert with third parties to threaten Mother. Mother seeks \$10,000 total in Family Code section 271 sanctions (or half (\$5,000) awarded under Code of Civil Procedure section 128.5). Mother asserts that Father coordinated with his parents to

1 threaten Mother with criminal and civil consequences because Mother submitted transcripts of
2 recorded conversations between Father's parents as evidence in her Request for Domestic
3 Violence Restraining Order (DVRO). Mother attached as Exhibit 1 a letter from attorney Douglas
4 Rappaport, who represents Father's parents, requesting the transcripts be removed from the Court
5 record, and not be used in any fashion, as his clients were unlawfully recorded in their own home
6 in violation of Penal Code section 632. The matter was set for hearing on 5/5/26.

7 2) On 5/13/26, counsel for Mother filed a supportive declaration and declaration substantiating her
8 request for attorney's fees sanctions.

9 3) On 4/22/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
10 Father states that the parties and Father's parents all resided together in San Francisco for periods
11 of months at a time over the course of five years. Father asserts that Mother recorded Father's
12 parents in their own bedroom without notice and then attached transcripts of these recordings to
13 her Request for DVRO. Father states that it is his understanding that both parties were asked – via
14 a letter from his parent's counsel – to remove any recording of his parent's private conversations
15 from the record.

16 4) On 4/22/26, Father filed objections to and a motion to strike portions of Mother's declaration and
17 the declaration of Mother's counsel.

18 5) On 4/22/26, Father filed a Memorandum of Points and Authorities. It is Father's position that
19 Mother's motion concerns the action of non-parties and their pursuit of legitimate legal claims to
20 protect privacy interests. Father asserts that the letter simply states the recordings were obtained
21 in contravention of Penal Code section 632 and requests the transcripts be removed from the
22 record. Father argues he is entitled to sanctions under Family Code section 271 or Code of Civil
23 Procedure section 128.5(f).

24 6) On 4/22/26, counsel for Father filed a declaration substantiating his request for \$18,310 to
25 \$20,970 in attorney's fees sanctions.

26 **B. Findings and Order**

27 1) Preliminarily, the Court rules on Father's objections to and motion to strike portions of Mother's
28 declaration and the declaration of Mother's counsel filed 4/22/26 as follows:

29 a. Objections to declaration of Mother:

- i. Father's objection NO. 1 is SUSTAINED. The Court will consider this request stricken.
- ii. Father's objection NO. 2 is SUSTAINED. The Court will consider this request stricken.
- iii. Father's objection NO. 3 is OVERRULED.
- iv. Father's objection NO. 4 is OVERRULED.
- v. Father's objection NO. 5 is SUSTAINED. The Court will consider this request stricken.
- vi. Father's objection NO. 6 is OVERRULED.
- vii. Father's objection NO. 7 is SUSTAINED. The Court will consider this request stricken.
- viii. Father's objection NO. 8 is OVERRULED.
- ix. Father's objection NO. 9 is OVERRULED.
- x. Father's objection NO. 10 is OVERRULED.
- xi. Father's objection NO. 11 is OVERRULED.
- xii. Father's objection NO. 12 is SUSTAINED. The Court will consider this request stricken.
- xiii. Father's objection NO. 13 is SUSTAINED. The Court will consider this request stricken.

b. Objections to declaration of Mother's counsel:

- i. Father's objection NO. 1 is SUSTAINED. The Court will consider this request stricken.
- ii. Father's objection NO. 2 is SUSTAINED. The Court will consider this request stricken.
- iii. Father's objection NO. 3 is OVERRULED.
- iv. Father's objection NO. 4 is SUSTAINED. The Court will consider this request stricken.
- v. Father's objection NO. 5 is SUSTAINED. The Court will consider this request stricken.

1 vi. Father's objection NO. 6 is OVERRULED.

2 vii. Father's objection NO. 7 is SUSTAINED. The Court will consider this request
3 stricken.

4 viii. Father's objection NO. 8 is SUSTAINED. The Court will consider this request
5 stricken.

6 ix. Father's objection NO. 9 is SUSTAINED. The Court will consider this request
7 stricken.

8 2) Mother's request for the Court to find that Father violated the TRO is DENIED. The Court agrees
9 with Father that his parents are entitled to pursue legitimate legal claims to protect their privacy
10 interests. Moreover, the Court finds that Father simply informing his parents that transcripts of
11 recordings of their private conversations were submitted as evidence in DVRO action is not a
12 violation of the TRO. Notably, both parties received the letter from Father's parent's counsel,
13 which requests the transcripts of private conversations between the parties be removed from the
14 record and not used by either party.

15 3) Accordingly, Mother's request for sanctions is DENIED.

16 4) The Court, however, finds good cause to GRANT Father's request for Family Code section 271
17 sanctions in the amount of \$5,000. The Court finds that Mother engaged in litigation conduct that
18 frustrates the policy of promoting settlement in family law cases by filing the instant Request for
19 Order. Mother shall pay this balance in full by 6/5/26.

20 5) Counsel for Father shall prepare the Findings and Order After Hearing.

21 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
22 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
23 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
24 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
25 proposed order after hearing directly to the court. Failure to submit the order after hearing within
26 10 days may allow the other party to prepare a proposed order and submit it to the court in
27 accordance with CA Rules of Court, Rule 5.125(d).
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